IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI

COURT-VI

Item No. 627
CAA-97/PB/2021

IN THE MATTER OF:
M/s. Rehva Industries India Ltd. and
M/s. Param Infra Pvt. Ltd. **...APPLICANT**

Section
U/s 230-232

Order delivered on 07.04.2022
(Virtual Hearing)

Coram:
SHRI P.S.N. PRASAD, HON'BLE MEMBER (JUDICIAL)
SHRI RAHUL BHATNAGAR, HON'BLE MEMBER (TECHNICAL)

For the Applicant	:Ms. Rekha Mittal, Practising Company Secretary, Authorised Representative
For the RD	:Ms. Swechcha Mishra, Advocate.
For the OL	:Ms. Hemlata Rawat, Advocate.
For the Income Tax Department	:Mr. Puneet Rai and Ms. Adeeba Mujahid Advocates.

ORDER

Heard the submissions made by the learned counsel for the Petitioner. Counsel for the Income Tax Department is present and pointed out the observations of the concerned Assessing Officer in the report filed with regard to Transferee Company. The counsel for the Petitioner has submitted that they had already furnished an affidavit-cum-undertaking in response to the observations made in the report of the Income Tax Department. Counsel for OL is present and counsel for the OL has submitted that despite query letter (to Applicant to show them the last three years Minutes Book of Board of Directors and Minutes Book of Shareholders as well as Cash Book, Bank Book and

(Anjula) —Sd— —Sd—

Ledger for last six years). Petitioners have not shown these records. Therefore, this Tribunal directs the Petitioner to show the records identified by the OL to enable OL to provide clearance from their aspect for the said amalgamation proposal. Two weeks' time is granted to RD to file their report and post this matter after three weeks. List this matter on **27.04.2022**.

-Sd-

(Rahul Bhatnagar)
Member (T)

-Sd-

(P.S.N Prasad)
Member (J)

(Anjula)